



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

JAN 19 1995

DOT-E 11060

EXPIRATION DATE: December 30, 1996

(FOR RENEWAL, SEE 49 CFR 107.105.)

1. GRANTEE: Hockney Pty. Ltd., Australia
US Agent: J. K. Shackleton, Rancho Palos Verdes, CA
2. PURPOSE AND LIMITATIONS: This exemption authorizes the manufacture, mark and sale of cargo tank motor vehicles meeting DOT Specification 406, except for the use of aluminum alloys 6005A-T6, 5083 and 6061 as materials of construction, for the transportation in commerce of certain Class 3 liquids. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 178.345-2
5. BASIS: This exemption is based on the application of Hockney Pty. Ltd. dated May 4 1993, and supplemental information dated July 1, December 23, 1993, and March 10, 1994, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Gasoline	Class 3	UN1203	II
Hexanes	Class 3	UN1208	II
Kerosene	Class 3	UN1223	III
Natural gasoline	Class 3	UN1257	I, II
Petroleum crude oil	Class 3	UN1267	I, II, III
Petroleum distillates, n.o.s.	Class 3	UN1268	I, II, III
Petroleum oil	Class 3	UN1270	I, II, III
Petroleum spirit	Class 3	UN1271	I, II
Fuel, aviation, turbine engine	Class 3	UN1863	I, II, III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - The authorized packaging is an aluminum cargo tank motor vehicle that complies with all requirements of Specification DOT 406 except that aluminum alloy 6005A-T6 is used for alloy extrusions to improve barrel strength and distribute loads. Aluminum alloys 5083 and 6061 are also authorized as shown on Drawing Nos. CN-0009, AS-0021, and AD-0029.
- b. TESTING - All tests for Specification DOT 406 apply.
- c. MARKING - All requirements of 49 CFR 178.345-14 apply. The nameplate shall be marked with the DOT Specification number as follows: DOT 406 E-11060.

8. SPECIAL PROVISIONS:

- a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the

current exemption is maintained at each facility from which such offering occurs.

- b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.
- c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- e. Prior to the manufacture and sale of the cargo tank motor vehicles authorized by this exemption, a copy of the manufacturer's current ASME Certificate of Authorization for the ASME "U" stamp and a copy of the manufacturer's cargo tank motor vehicle registration number issued under 49 CFR Part 107 subpart E, must be on file with the Office of Hazardous Materials Exemptions and Approvals.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport materials covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

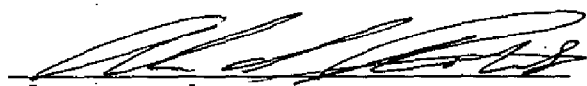
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

JAN 19 1995


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA